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Dependable steps to defeat BDS

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By its own admission, the global Boycott, Divestment and Sanctions (BDS) movement seeks to use economic and political pressure to isolate and delegitimize the State of Israel. Since BDS has not been able to gain traction among serious foreign policy thinkers of any political stripe, it has focused its efforts on organizations that typically do not specialize in international relations. Working closely with the American Jewish Committee and AJC Chairman Dean Schramm, we recently provided pro bono legal assistance to a group of University of California (UC) graduate students who successfully overturned a BDS resolution that was adopted by their local union. In so doing, we relied on a number of arguments that can be applied in other contexts and in the broader struggle against BDS.

In 2014, the union which represents UC graduate student workers—UAW Local 2865—adopted a resolution endorsing BDS and encouraging an academic boycott of Israeli universities. With our support, a number of courageous UC graduate students appealed this discriminatory resolution to the UAW International President, who ultimately found that BDS violates the UAW's Constitution by, among other things, promoting "discrimination and vilification" against Jews and Israelis. This decision was unanimously affirmed by a diverse panel of independent legal scholars, known as the UAW Public Review Board, who fully supported the UAW's forceful rejection of BDS.

The UAW International's decision was a major defeat for the BDS movement, which had invested significant time and resources seeking to gain control of UAW Local 2865. While the UC graduate students who successfully appealed the resolution did a masterful job of defending Israel, our decision to go on the offensive and attack BDS also proved effective. For this reason, we would encourage advocates in a similar situation to consider emphasizing the following points:

Focus on the Harm to American Workers. In our case, we were able to explain how BDS would harm other UAW members by targeting companies that employ thousands of unionized workers. While it is all too easy for BDS activists to distort Middle East history, they cannot deny — and indeed readily admit — that BDS seeks to harm major corporations that play an important role in the U.S. economy. In the end, it became clear to UAW officials that the debate over BDS was really about balancing the political preferences of a few radical activists against the jobs, health care and pensions of thousands of hardworking men and women.

Shine a Spotlight on Racist Rhetoric. To expose the true face of BDS, we highlighted the remarks of several BDS activists who were involved in the UAW campaign. These individuals advanced classic anti-Semitic stereotypes of Jews, argued that pro-Israel UAW members should be denied the "right to speak," and even charged that the Zionist movement made covert "deals" with the Nazis to bring "Jewish settlers to Palestine" in exchange for "sacrificing the vast majority of European Jews" during the Holocaust. This rhetoric undermined the credibility of the BDS proponents and damaged their effort to present themselves as peaceful human rights activists.

Explain the Practical Consequences of Endorsing BDS. In our case, we presented evidence of the profound division caused by the debate over BDS and highlighted the significant harassment and discrimination faced by Jewish and Israeli UAW members in connection with the BDS campaign. Among other examples, we offered testimony from a UCLA student who stopped wearing clothing or jewelry that would identify her as Jewish out of a fear of public shaming, and we pointed to the frightening experiences of a UC Berkeley student who left the union after she was verbally harassed and physically intimidated for speaking out against BDS. These examples brought into sharp focus the significant negative consequences of endorsing BDS, especially for any organization that values collaboration, cooperation and goodwill among its membership.

Expose the True Aims of the BDS Movement. To expose the true goals of the BDS movement, we highlighted the opposition of UAW BDS activists to resolutions supporting the two-state solution and "the Jewish right to self-

determination," as well as their claim that "bringing down Israel really will benefit everyone in the world." This helped UAW officials to recognize that BDS is not about promoting peace but instead seeks Israel's destruction.

Moving forward, we expect that the UAW's forceful rejection of BDS — and its clear recognition of the discrimination inherent in this movement — will serve as a powerful precedent for other labor unions and national organizations. We also hope this decision will underscore the counterproductive nature of BDS, and make clear that direct negotiations are the only path to the peace and justice that Palestinians and Israelis alike so richly deserve. Until that time comes, however, our community must be prepared to effectively push back against efforts to transform our democracy's most important institutions into weapons to attack Israel.

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